

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

----- X

DAMIEN CALDERON,

Plaintiff,

-against-

POLICE OFFICER JOSE ARROYO, Shield No. 9855,
POLICE OFFICER FAUSTO GOMEZ, Shield No. 13157

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates New York
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the verified complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
April 21, 2017

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: POLICE OFFICER JOSE ARROYO, Shield No. 9855, 25th Precinct, 120 E. 119th St.,
New York, NY 10065

POLICE OFFICER FAUSTO GOMEZ, Shield No. 13157, 25th Precinct, 120 E. 119th
St., New York, NY 10065

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VERIFIED COMPLAINT

JURY TRIAL DEMANDED

Plaintiff, DAMIEN CALDERON, by his attorneys, Jacobs & Hazan, LLP, as and for his Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, and the common law and the laws of the State of New York. On April 28, 2014, at approximately 2:00 a.m. plaintiff Damien Calderon was subjected to an unlawful stop, question, frisk, detention, false imprisonment, and false imprisonment while lawfully present in the vicinity of E. 125th Street and First Avenue, New York, New York. Plaintiff was deprived of his constitutional rights when the individual defendants unlawfully stopped, questions, frisked, falsely arrested, maliciously prosecuted, and denied plaintiff the right to a fair trial in violation of the Fourth and Fourteenth Amendments to the United States Constitution and in violation of New York State Law.

PARTIES

2. Plaintiff Damien Calderon is a resident of the State of New York.

3. Police Officer Jose Arroyo, Shield No. 89844, is and was at all times relevant herein, an officer, employees, and agents of the New York City Police Department.

4. On the date of the subject incident, Police Officer Jose Arroyo, Shield No. 89844, was assigned to the 25th Precinct.

5. Police Officer Jose Arroyo, Shield No. 89844, is being sued in his individual and official capacities.

6. Police Officer Fausto Gomez, Shield No. 13157, is and was at all times relevant herein, an officer, employees, and agents of the New York City Police Department.

7. On the date of the subject incident, Police Officer Fausto Gomez, Shield No. 13157, was assigned to the 25th Precinct.

8. Police Officer Fausto Gomez, Shield No. 13157, is being sued in his individual and official capacities.

9. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in his as an officer, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

10. At all times relevant hereto, defendants CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

11. Defendants City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agents in the area of law enforcement and for which it is ultimately responsible. The defendants City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

12. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendants, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

13. Plaintiff has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

14. On April 28, 2014, at approximately 2:00 a.m., plaintiff was a lawful passenger in a motor vehicle traveling in the vicinity of lawfully in the vicinity of E. 125th Street and First Avenue, New York, New York.

15. On April 28, 2014, at approximately 2:00 a.m., plaintiff was a lawful passenger in the backseat of a motor vehicle that another individual was driving.

16. Plaintiff did not know the individual that was driving the motor vehicle, as plaintiff and his girlfriend were merely being given a ride by this individual.

17. Thereafter, the defendant police officers pulled over the motor vehicle in the vicinity of 1st Avenue and 125th Street, New York, New York without reasonable suspicion or probable cause.

18. The defendant police officers unlawfully ordered plaintiff to exit the motor vehicle.

19. Plaintiff complied with all of the defendant police officers commands and requests.

20. At no time relevant herein did plaintiff commit a crime or behave in a way that would establish probable cause to believe that plaintiff committed a crime.

21. At no point in time did the defendant police officers have probable cause to believe plaintiff committed any crime.

22. At no point in time was plaintiff in possession, custody or control of any drugs, guns, or contraband of any kind.

23. Nevertheless, the defendant police officers unlawfully handcuffed plaintiff, and he was falsely arrested by the defendant police officers.

24. Thereafter, plaintiff was transported to the 25th precinct for arrest processing.

25. When plaintiff arrived at the 25th Precinct, he was photographed, fingerprinted and then placed in a holding cell by the defendants.

26. At no time in the 25th Precinct did defendants recover any contraband or any other illegal paraphernalia from plaintiff.

27. On April 28, 2014, after several hours in custody at the 25th precinct, plaintiff was transported to Manhattan Central Booking and placed in a holding cell.

28. Thereafter, the defendant police officers provided the New York County District Attorney's Office with false, misleading and/or incomplete information about the facts that allegedly led them to believe that plaintiff committed a crime.

29. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

30. After being unlawfully detained for approximately 22 hours, on April 28, 2014, plaintiff was arraigned in New York County Criminal Court and charged with crimes that he did not commit.

31. Plaintiff was unlawfully charged with Unauthorized Use of a Vehicle in the Third Degree and Criminal Possession of a Forged Instrument.

32. Thereafter, plaintiff appeared in Court on several occasions before all charges were dismissed on November 19, 2014 upon motion of the District Attorney's Office.

33. The police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable stop, question, frisk, seizure, false arrest, malicious prosecution, and denial of a fair trial of plaintiff.

34. The unlawful stop, question, false arrest, false imprisonment, unlawful seizure, malicious prosecution, and denial of fair trial of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment, and Fourteenth Amendment Rights

35. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 34 with the same force and effect as if more fully set forth at length herein.

36. The individually named police officer defendants while acting within the scope of their authority, caused plaintiff to be unlawfully stopped, questioned, frisked, seized, falsely arrested, falsely imprisoned, maliciously prosecuted, and denied the right to a fair trial without probable cause in violation of plaintiff's right to be free of an unreasonable seizure and denial of due process under the Fourth and Fifth Amendment of the Constitution of the United States and to be free of a deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

37. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 36 with the same force and effect as if more fully set forth at length herein.

38. The acts and conduct of the defendants constitutes false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

39. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

40. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for his conduct.

41. The City, as the employer of the officer defendants, are responsible for their wrongdoing under the doctrine of *respondeat superior*.

42. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

THIRD CAUSE OF ACTION

Unlawful Stop, Question, and Frisk

43. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.

44. The illegal approach, pursuit, stop, questioning and frisk employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

45. The conduct of defendants in stopping, frisking, and searching, plaintiff was performed under color of law and without any reasonable suspicion of criminality or other constitutionally required grounds.

46. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

49. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to physical, economic, emotional and psychological injuries.

FOURTH CAUSE OF ACTION

Denial of Right to Fair Trial

50. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs numbered 1 through 49 with the same force and effect as if fully set forth herein.

51. Defendants manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the New York County District Attorney's Office.

52. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the New York County District Attorney's Office.

53. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the New York County District Attorney's Office.

54. In withholding/creating false evidence against plaintiff Damien Calderon and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to a fair trial under the New York State Constitution and under the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

55. As a result of the foregoing, plaintiff Damien Calderon, sustained, inter alia, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of his constitutional rights.

56. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

57. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

Malicious Prosecution

58. Plaintiff repeats and realleges paragraphs 1 through 57 as if fully set forth herein.

59. The acts and conduct of the defendants constitute malicious prosecution under the laws of the United States Constitution, State of New York and New York State common law.

60. Defendants commenced and continued a criminal proceeding against plaintiff.

61. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which he was prosecuted.

62. The prosecution and criminal proceedings terminated in plaintiffs' favor on the aforementioned dates.

63. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

64. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the United States Constitution and laws of the State of New York.

65. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

66. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 65 with the same force and effect as if more fully set forth at length herein.

67. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in his presence by officers.

68. Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

70. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

71. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

JURY DEMAND

72. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Damien Calderon demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorney's fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
April 21, 2017

By: /s/
STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: POLICE OFFICER JOSE ARROYO, Shield No. 9855, 25th Precinct, 120 E. 119th St.,
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POLICE OFFICER FAUSTO GOMEZ, Shield No. 13157, 25th Precinct, 120 E. 119th St., New York, NY 10065

ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

DATED: New York, New York
April 21, 2017

/s/
STUART E. JACOBS, ESQ.